

[doc. web n. 10084158]
Provision of July 17, 2024
Register of provisions
n. 576 of July 17, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN the meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, on the protection of natural persons with respect to the
processing of personal data, as well as the free movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD to the Code regarding the protection of personal data (Legislative Decree of June
30, 2003, n. 196), as amended by Legislative Decree of August 10, 2018, n. 101, containing provisions
for the adaptation of the national legal system to the aforementioned Regulation (hereinafter "Code");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's Regulation n. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

PREMISED

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

With a complaint dated May 15, 2023, regularized and supplemented on July 18, Mr. XX complained
about receiving promotional emails from Iliad Italia S.p.A. (hereinafter Iliad or the Company). The
complainant, specifying that he is a customer of Iliad with several phone lines registered in his name,
stated that he had never given any consent to the Company for promotional purposes and attached,
for each activated line, the print screens from his customer area showing that he had effectively denied
any willingness to consent to the processing of data for promotional purposes (marketing/ Profiling/
Enrichment/ Localization).

Mr. XX finally represented that, at the bottom of the received emails, there was a link to oppose the
receipt of further messages.

In a note dated September 20, 2023, Iliad, in response to the Office's request for information,
described the procedures adopted for its marketing activities specifying that, in accordance with the
privacy notice adopted since March 7, 2023, the data of the data subjects are processed for
promotional purposes only with prior express consent that can be given at the time of signing the
contract and subsequently modified by accessing one's personal area on the web. It also added that,
specifically regarding the sending of emails to its customers to promote products or services similar to
those purchased, the processing occurs by virtue of what is provided for in Article 130, paragraph 4, of
the Code (soft spam). Such processing, as described in the aforementioned notice, would be based on
the legitimate interest of the data controller and the data subject can oppose by sending a request to
the email address privacy@it.iliad.com. Finally, regarding the unwanted communications received by
Mr. XX, the Company stated that it had recorded the complainant's opposition after he had used the
link at the bottom of the emails, immediately interrupting the sending of promotional emails classified
as soft spam.

In response to this, the complainant pointed out that he had never given any consent for the
processing of his data for promotional purposes and that this will had been expressed from the outset
through the denial of all consents in his personal area. He also confirmed that he had expressed his
opposition by clicking on the link at the bottom of the emails, although he did not consider such an

operation necessary since his will should already be considered clearly expressed; among the consents not given, and thus recorded in the personal area, there was also the one described as follows (and not selected): “Marketing purposes: I wish to receive marketing communications about products and services offered by Iliad through automated and/or traditional communication means.” The Office therefore requested Iliad to provide additional information regarding the documentation of consents and refusals recorded in its systems for the complainant's lines. The Company, in a note dated December 22, 2023, produced documentation certifying the registration of consents from which it appears that a distinct record is kept of the data subject's willingness regarding marketing purposes (identified under the heading “consent_marketing”) and the opposition to soft spam (identified as “consent_legitimate”). In particular, regarding Mr. XX, for all the lines registered in his name, consent to marketing had been denied from the outset and, regarding soft spam, the dates on which the individual oppositions were expressed were recorded. The Company confirmed, however, that after those dates, Mr. XX was no longer included in any promotional campaign based on soft spam. Finally, in response to this second feedback, Mr. XX – with a certified email dated December 29, 2023, also addressed to Iliad – reiterated that his will not to receive promotional contacts had always been clearly expressed. Furthermore, in order to document the process followed by the user for the activation of a telephone service, he attached the print screens related to the online activation of an offer. The activation process would have concluded with the following screen: As can be seen from the attached screenshot, Mr. XX did not select the second box to allow the receipt of promotional offers. However, in relation to this procedure, he appears to have received an email containing an invitation to resume the process to complete the subscription. At the bottom of that email, there was also the information “You receive this email based on the so-called legitimate interest of Iliad to promote products and/or services similar to those you have purchased.”

2. THE CONTESTATION OF VIOLATIONS

The Office contested the violations identified in the initiation of the procedure dated February 22, 2024, prot. no. 21680/24, notified via certified email, observing the following.

From the documents obtained, it was found that the Company was processing data for marketing purposes concerning its customers using two different legal bases (as described in the privacy notice):

- a) the consent of the data subject “for the sending, upon consent, of marketing communications regarding products and services, activities, and events organized by or in collaboration with Iliad Italia (for example, through the sending of advertising material, conducting market research). Marketing communications can be sent both through traditional communication tools such as postal mail or phone calls from an operator and through automated communication tools such as, by way of example: email, SMS, calls, interactive automated communication systems” (see point L of the notice);
- b) legitimate interest “to send, pursuant to Article 130 paragraphs 3 bis and 4 of the Privacy Code, marketing communications via email and/or postal mail regarding services and/or products similar to those provided by Iliad Italia to the User...” (see point I of the notice).

The Office noted that, with exclusive regard to the sending of promotional emails, although both of these scenarios (marketing emails and soft spam emails) were described in the privacy notice, there did not appear to be any concrete distinction between the two treatments described, since they both involve sending promotional communications through automated channels (emails), with the only difference being that emails sent based on legitimate interest would pertain to products similar to those purchased by customers. It followed that – given the generic and broad formulation of the notice described in point a) as well as the consent request formula for marketing present in the personal area⁽¹⁾ – there would be no distinction, in fact, between the two treatments as they are merely in a relationship of genus to species (the generality of promotional communications sent via email and the specificity of the same communications sent via email for similar products). Indeed, the complainant was unable to distinguish the two circumstances, continuing to rely on the fact that the data controller had acknowledged the refusals already expressed.

Moreover, the ability to manage consents independently in the personal area is a measure that allows the data subject to have control over their own data while simultaneously enabling the data controller

to keep track of such will (as documented by Iliad).

The Office therefore considered that the refusal expressed in the personal area – due to the genericity and breadth of the formulation – could not be considered distinct from that formulated to oppose soft spam, nor could it be circumvented by relying on the exemption granted by Article 130, paragraph 4 of the Code. It was indeed recalled that this provision, which constitutes an exception to the general rule, operates only under certain requirements, including the necessity that “the data subject, adequately informed, does not refuse such use initially or at the time of subsequent communications.” The temporal term of the adverb “initially” must be interpreted as falling within a moment prior to the sending of the emails, similarly to what is provided for the informative phase, governed by the last paragraph of Article 130, paragraph 4: “the data subject, at the time of collection and at the time of sending each communication... is informed of the possibility to object.” This initial objection, therefore, can very well be expressed by the data subject even by accessing their personal area after the contract has been signed, as Mr. XX indeed did, considering this sufficient.

In the initiation of the procedure, it was nonetheless noted that Iliad has correctly provided the possibility to object at any time by communicating in the new privacy notice the email channel privacy@it.iliad.com; however, it was deemed that this measure did not allow the data controller to ignore any expressions of will that the data subject may have communicated through the personal area. This is also due to the necessity of allowing the data subject to easily exercise the right to object and to revoke consents with the same ease with which they may have been granted.

The Office also clarified that the particular treatment qualified as “soft spam” is permitted by the special provision of Article 130, paragraph 4 of the Code which, while constituting in fact the legal recognition of a legitimate interest of the data controller, from a regulatory point of view constitutes a mere derogation from the obligation of consent.

It was indeed recalled that the sending of promotional communications via electronic communication tools is governed by Article 130 of the Code, in implementation of Article 13 of Directive 2002/58/EC, which constitutes a *lex specialis* where the only legal basis allowed is the importance of distinguishing between different types of communications and the legal bases that govern them.

4. CONCLUSIONS

In light of the above, the Office maintains that the violations attributed to Iliad are valid and that the company must take appropriate measures to ensure compliance with the applicable regulations. The company is encouraged to review its practices regarding the management of consents and the sending of promotional communications to avoid future infractions.

5. SANCTIONS

The Office reserves the right to impose sanctions in accordance with the provisions of the Regulation and the Code, should it determine that the violations have not been adequately addressed by the company.

6. FINAL REMARKS

The company is invited to submit any further documentation or clarifications that may support its position within the next 30 days. Failure to do so may result in the issuance of a formal decision regarding the violations identified.

This document serves as a formal communication of the findings and the expectations of the Office regarding the compliance of Iliad with the relevant legal framework.
legitimate interest.

4.2 Legal Assessments

In the exercise of the right to defense, the Company has clarified certain aspects of the processing and, while not being able to dismiss the observations made by the Office, has allowed for a better understanding of the conduct and a more accurate qualification of the resulting responsibilities of the data controller.

Therefore, recalling both the arguments contested by the Office and the defensive observations of the Company, the following conclusions can be drawn.

4.1 Sending promotional communications via email and transparency

The Company conducts periodic marketing activities, using both traditional and automated channels, after obtaining the consent of the interested parties. In addition, Iliad sends promotional communications exclusively via email, relying on the exemption from consent provided by Article 130, paragraph 4 of the Code. These two different modalities are subject to two corresponding types of registrations in the systems, activating subsequent procedures for managing/revoking consents or for opposition. During the proceedings, the Company was able to document the registrations made and to prove that the system immediately recorded the complainant's opposition to soft spam. Nevertheless, the complainant experienced treatment contrary to his will not to receive promotional contacts because, not being able to understand the system underlying Iliad's management of the treatments, he perceived nothing but the receipt of unwanted emails despite having clearly expressed his will from the moment of signing the contracts. Mr. XX, in fact, had never given any consent for promotional purposes and had immediately set his customer area to deny any processing for such purposes, trusting that this would be sufficient to prevent the receipt of unwanted contacts. To justify his interpretation of the facts, he also points to the formulation of the consent request present in the personal area, which was all-encompassing ("Marketing purposes: I wish to receive marketing communications about products and services offered by Iliad through automated and/or traditional communication means"), as well as the wording present in point I) of the privacy policy ("Marketing communications may be sent both through traditional communication tools such as postal mail or a phone call from an operator and through automated communication tools such as, for example: email, SMS, call, interactive automated communication systems"), explicitly referring also to the legitimate interest.

****Email Channel and Related Legal Basis of Consent****

In this context, the fact that the same notice mentioned, in a separate section (point I), the possibility of receiving promotional emails based on Article 130, paragraph 4 (then qualified as legitimate interest) is of little relevance. This is because, despite Iliad's efforts to simplify the notice, it is difficult for an interested party to understand in advance the difference between a generically promotional email and one of soft spam. In the framework set up by the Company, there is, in fact, no significant difference except at the level of registration in the holder's systems; indeed, according to what an interested party can read in the privacy notice and in the consent request form, promotional emails and soft spam emails are in a genus to species relationship such that the denial of consent to receive generic promotional messages through automated means such as SMS, emails, etc., should, in fact, also encompass the opposition to specific soft spam messages.

Thus, from the perspective of the interested party (who, as the weaker party, is the one whose position should be valued), Iliad's conduct resulted, in substance, in the delivery of unwanted communications despite the opposition that they believed they had correctly expressed. The representation of the facts by the interested party is understandable given that they had responded "no" to the request for consent for marketing through automated means; from their point of view, that "no" was more than sufficient, as they had not been placed in a position to understand the subtle difference between the communications to which they opposed (ALL marketing emails without distinction) and those of soft spam.

A model set up in this way, therefore, means that the will correctly expressed by the interested party not to receive promotional communications is, in fact, circumvented by still sending them unwanted emails. It is therefore up to the holder to identify the right measure to balance the needs of their business with the necessity of being understood by the user and respecting their will. In this regard, it is noted that the needs of holders to simplify the methods of collecting consent have been considered by the Authority in the provision of May 15, 2013(4), to whose principles and suggestions, *mutatis mutandis*, reference is made.

All of this having been stated and taking into account that the procedure implemented resulted in the emails intended for the complainant being sent in the absence of their consent to receive them, the violation of Article 130, paragraph 2 of the Code is confirmed, and due to the fact that the model set up is contrary to the principles of lawfulness, fairness, and transparency, it is believed that the violation of Article 5, paragraph 1, letter a) of the Regulation is integrated. Consequently, the prerequisites for the application of an administrative pecuniary sanction, pursuant to Article 58, paragraph 2, letter i) of the Regulation, are deemed to exist.

Furthermore, as indicated in point 2, the Office raised a concern regarding the qualification, in the privacy notice, of the legal basis used for soft spam activities (see point I of the notice dated March 7, 2023, produced by Iliad with the response note of September 20, 2023). In particular, in the initiation act of the procedure, it was observed that Article 130, paragraph 4 of the Code cannot be considered analogous to legitimate interest but constitutes a mere derogation from the obligation of consent. This is because, given the special regulation to which the sending of promotional communications via email is subject, the legal basis for processing must be sought among those indicated by Article 130 of the Code, which incorporates Article 13 of Directive 2002/58/EC, and not among the conditions of lawfulness referred to in Article 6 of the Regulation.

For these reasons, Iliad was contested for this inaccuracy in the privacy notice. During subsequent discussions, having understood the concern raised, the Company corrected the text of the notice by correctly indicating Article 130, paragraph 4 instead of legitimate interest (see notice produced during the hearing of May 14, 2024). However, it is noted that this passage refers to paper mail, which cannot fall within the means allowed by soft spam.

Recalling that, in accordance with what is provided for by Article 130, paragraphs 3 and 3-bis of the Code, for channels other than those falling within the scope of Directive 2002/58/EC, it is always possible to rely on one of the legal bases referred to in Article 6 of the Regulation, it is also the responsibility of the holder to correctly place in the notice the processing (in this case, the sending of promotions via paper mail), should they wish to avail themselves of it, possibly referring to the simplification methods indicated by the Authority in the aforementioned provision of May 15, 2013.

For these reasons, it is deemed necessary to issue a warning to Iliad, pursuant to Article 58, paragraph 2, letter b) of the Regulation, regarding the fact that, in the current version of the privacy notice, the sending of paper mail for promotional purposes is improperly indicated as a processing based on the legal basis referred to in Article 130, paragraph 4 of the Code. Consequently, pursuant to Article 58, paragraph 2, letter d) of the Regulation, Iliad is ordered to correct the notice.

However, with regard to this aspect, the prerequisites for the application of a pecuniary sanction are not found, considering that under Article 83, paragraph 2, of the Regulation, sanctions are imposed, depending on the circumstances of each individual case, in addition to corrective measures or in... the measures in question are applied only if necessary, proportionate, and deterrent. In this specific case, it is plausible to hypothesize that the current formulation, adopted following discussions with the Authority, is the result of a typographical error: Iliad has indeed corrected the legal qualification of soft spam but has not simultaneously removed the reference to paper mail, which in the previous version was included along with soft spam within the scope of legitimate interest. The aforementioned circumstances, therefore, lead to qualifying the case as a "minor violation," pursuant to Article 83, paragraph 2, and Recital 148 of the Regulation.

4.2 Basket Recovery Activity or "Cart Recovery"

The Office has contested that Iliad sent an email to Mr. XX inviting him to complete the online purchase process that was initiated but not concluded. The Company justified itself by specifying that this activity should not be classified as having promotional purposes but would more properly fall under the activities commonly known as basket recovery or "cart recovery" and would only serve to assist potential customers in the purchasing phase.

However, based on the elements in the records, it does not seem possible to exclude the promotional connotation of the communication sent for the following reasons:

a) First of all, it is Iliad itself that qualifies the message as promotional (implying the use of soft spam) since at the bottom of the email there is the following notice: "you receive this email based on the so-called legitimate interest of Iliad to promote products and/or services similar to those you have purchased" (it is worth noting that Mr. XX had not yet purchased anything but had merely attempted);
b) From the tone of the communication, it appears strongly oriented to encourage the potential customer to complete the purchase, reminding him of the convenience of the offer, also due to the fact that, according to the privacy notice, this communication is repeated three times within seven days of the attempted purchase.

If such premises could lead to the conclusion that the practice has an exclusively promotional purpose, it cannot be ignored that it may also have utility for the potential customer. In fact, in the event that he had to interrupt the purchasing process or had a subsequent change of mind, to purchase the service he would have to initiate a new request by filling in all the necessary fields again. In these terms, therefore, the basket recovery procedure can be considered useful if, as in this case, it contains a link to recover the cart without having to re-enter all the data. However, for the practice to be truly attributable solely to the functionality of cart recovery and not to raise doubts that it also has a broadly promotional purpose, it is sufficient for the user to receive only one communication of this type (and not three as stated by Iliad in the defense memorandum and in the privacy notice); for the same reason, the notice at the bottom of the email regarding the legitimate interest in promoting similar services is not relevant because such wording legally refers to the institution of soft spam, which cannot be invoked in this case. Conversely, if the Company intends to accompany the functionality of cart recovery with marketing activity, it should ensure that it obtains the consent of the interested party, and, even in this case, the reference to the promotion of similar services would not be pertinent.

It follows that the email sent to Mr. XX after the activation attempt constituted processing in violation of Article 6, paragraph 1, letter a) of the Regulation and Article 130, paragraph 2 of the Code.

Therefore, it is deemed necessary to issue a warning to Iliad, pursuant to Article 58, paragraph 2, letter b) of the Regulation, regarding the fact that the sending of multiple communications after the failed online purchase, in the manner described above, also has promotional purposes (in addition to the utility related to cart recovery) without being supported by the consent of the interested party (in the case of not checking the specific option).

Consequently, pursuant to Article 58, paragraph 2, letter d) of the Regulation, Iliad must be ordered to align its processing as follows:

a) in the event that the Company intends to use the basket recovery functionality without any promotional intent, it must limit itself to sending only one email to the user with the link for cart recovery; otherwise, if it intends to use this means also for marketing activities, it must adhere to the will expressed by the interested party during the activation process (checking the consent box);
b) it must accordingly modify both the notice and the notice presented at the bottom of the emails with the clarification that, in any case, this activity cannot fall within the scope of soft spam.

However, the prerequisites for the application of a monetary penalty are not found, considering that under Article 83, paragraph 2, of the Regulation, penalties are imposed, depending on the circumstances of each individual case, in addition to corrective measures or in lieu of such measures, given that such penalties are applied only if necessary, proportionate, and deterrent. Even in this specific case, indeed, as done for the qualification of similar services, regard must be had to the novelty of this ruling concerning an activity, such as cart recovery, which is a very common practice in e-commerce but had not yet been examined by the Authority. It should also be noted that, In the specific case, the conduct emerged because the complainant attempted to activate a new account, having no intention of completing it, specifically to reveal the operational methods of Iliad, without any damage being incurred by him; also considering the fact that the Company had adopted technical and organizational measures aimed at containing the disturbance for those involved, in a context that, as mentioned, is not solely characterized by promotional purposes, this case can also be classified as a minor violation, pursuant to Article 83, paragraph 2, and Recital 148 of the Regulation.

ORDINANCE FOR THE APPLICATION OF ADMINISTRATIVE FINANCIAL SANCTION

Based on the above, various provisions of the Regulation and the Code have been violated in relation to processing activities carried out by Iliad, for which it is necessary to apply Article 83, paragraph 3, of the Regulation, according to which, if, in relation to the same processing or related processing, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative financial sanction does not exceed the amount specified for the most serious violation, with the consequent application of only the sanction provided for in Article 83, paragraph 5, of the Regulation.

For the purpose of quantifying the administrative sanction, the aforementioned Article 83, paragraph 5, while setting the maximum penalty at the sum of 20 million euros or, for companies, at 4% of the worldwide annual turnover of the previous financial year if higher, specifies the methods for quantifying the aforementioned sanction, which must "in any case [be] effective, proportionate and dissuasive" (Article 83, paragraph 1, of the Regulation), identifying, for this purpose, a series of elements, listed in paragraph 2, to be evaluated when quantifying the relevant amount.

In fulfillment of this provision, assuming, based on the information available in the last balance sheet (registered as of December 31, 2022), the occurrence of the second hypothesis provided for by the aforementioned Article 83, paragraph 5, and thus quantified the maximum penalty applicable at 40,556,271 euros, the following circumstances must be considered:

a) as an aggravating factor, the number of individuals involved in the processing since the violations detected, although emerging from the examination of a single case, have general implications as the measures chosen by Iliad concern all its customers (Article 83, paragraph 2, letter a), of the Regulation);

b) as mitigating factors, it is deemed appropriate to take into account:

1) the fact that the conduct does not appear to have been capable of causing damage to the data subject, who received only a few promotional emails that were immediately interrupted after his opposition; it is also taken into account that Iliad carries out limited promotional activities, directed only at its customers, which, according to the complaint, would have started in April 2023 (the complainant himself stated that "before that date, Iliad had never failed to comply with privacy consents," adding during the investigation: "despite the reasons for this dispute, I acknowledge that Iliad has always marched in the right direction (at least so far), embracing ethical principles of considerable stature to which it has always been loyal and consistent, qualities that have not gone unnoticed and that have contributed to making it loved by many, including me. My hope, whatever the Authority's decision will be, is that this Company can reflect on my disappointment just enough to understand if this is really the new commercial approach it wants to adopt" (Article 83, paragraph 2, letter a), of the Regulation);

2) the degree of responsibility of the data controller, considering that the Company had nonetheless adopted technical and organizational measures with the intention of ensuring respect for the rights of the data subjects, and has made itself available to consider any improvements that the Authority may suggest; it has also been able to document all the processing carried out and has already made some changes to the privacy notice (Article 83, paragraph 2, letter d), of the Regulation);

3) the degree of cooperation with the supervisory Authority (Article 83, paragraph 2, letter f), of the Regulation);

4) the categories of data affected by the violation, which only concerned common data such as personal data and email address (Article 83, paragraph 2, letter g), of the Regulation);

5) the economic losses recorded in the balance sheet (Article 83, paragraph 2, letter k), of the Regulation).

Based on the overall elements indicated above, and the principles of effectiveness, proportionality, and dissuasiveness provided for by Article 83, paragraph 1, of the Regulation, and taking into account the necessary balancing between the rights of the data subjects and the freedom of enterprise, also in

order to limit the economic impact of the sanction on the organizational and functional needs of the Company, it is deemed appropriate to apply to Iliad the administrative sanction of payment of an amount of 50,000.00 euros (fifty thousand/00), equal to 0.12% of the maximum penalty.

In this context, it is also deemed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Authority No. 1/2019, the publication of this section containing the injunction ordinance on the Authority's website should proceed. This measure is considered reasonable and dissuasive, along with the quantification of the financial sanction, due to the potentially broad scope of the processing.

It is noted that the conditions of Article 17 of the Regulation of the Authority No. 1/2019 concerning internal procedures with external relevance are met.

finalized for the performance of the tasks and the exercise of the powers assigned to the Guarantor, for the annotation of the violations identified herein in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u) of the Regulation.

ALL OF THE ABOVE, THE GUARANTOR

pursuant to art. 57, par. 1, lett. f), of the Regulation, declares the processing described in the reasoning to be unlawful, carried out by Iliad Italia S.p.A., with registered office at viale Francesco Restelli 1/A, Milan, VAT no. 13970161009; consequently:

- a) pursuant to art. 58, par. 2, lett. b) of the Regulation, issues a warning to Iliad regarding the fact that, in the current version of the privacy notice, the sending of paper mail for promotional purposes is improperly indicated as a processing based on the legal basis referred to in art. 130, paragraph 4 of the Code (as described in point 4.1 of the reasoning);
- b) pursuant to art. 58, par. 2, lett. b) of the Regulation, issues a warning to Iliad regarding the fact that the sending of multiple communications after the failure to make an online purchase, in the manner described in point 4.3 of the reasoning, also has promotional purposes (in addition to the utility related to cart recovery) without being supported by the consent of the data subject (in case of failure to check the specific option);
- c) pursuant to art. 58, par. 2, lett. d) of the Regulation, orders Iliad to correct the notice by specifying the legal basis on which the sending of promotional communications via paper mail is based, should it intend to use this communication channel;
- d) pursuant to art. 58, par. 2, lett. d) of the Regulation, regarding the cart recovery activity, orders Iliad to conform the processing as follows: I) in the event that the Company intends to use the basket recovery functionality without any promotional intent, it must limit itself to sending a single email to the user with the link for cart recovery; otherwise, in the event that it intends to use this means also to carry out marketing activities, it must adhere to the will expressed by the data subject during the activation process (checking the consent box); II) it must consequently modify both the notice and the message presented at the bottom of the emails with the clarification that, in any case, this activity cannot fall within the scope of soft spam;
- e) pursuant to art. 157 of the Code, orders Iliad to communicate to the Authority, within thirty days from the notification of this provision, the initiatives undertaken in order to implement the measures imposed and indicated in the previous points d) and e); any failure to comply with the provisions of this point may result in the application of the administrative pecuniary sanction provided for by art. 83, paragraph 5, of the Regulation;

ORDERS

pursuant to art. 58, par. 2, lett. i), of the Regulation, Iliad Italia S.p.A., represented by its legal representative, to pay the sum of €50,000.00 (fifty thousand/00) as an administrative pecuniary sanction for the violations indicated in point 4.1 of the reasoning concerning the sending of promotional communications via email; it is noted that the offender, pursuant to art. 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction.

ORDERS

the aforementioned Company, in case of failure to settle the dispute pursuant to art. 166, paragraph 8,

of the Code, to pay the sum of €50,000.00 (fifty thousand/00), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions in accordance with art. 27 of Law No. 689/1981;

DISPOSES

- f) pursuant to art. 154-bis, paragraph 3 of the Code, the publication of this provision on the website of the Guarantor (see also art. 37 of the Guarantor's regulation No. 1/2019);
- g) pursuant to art. 166, paragraph 7, of the Code, the publication of the injunction order on the website of the Guarantor, as an accessory sanction;
- h) pursuant to art. 17 of the Guarantor's Regulation No. 1/2019, the annotation in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u) of the Regulation, of the violations and the measures adopted.

Pursuant to art. 78 of Regulation (EU) 2016/679, as well as arts. 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the data subject, within thirty days from the date of communication of this provision, or sixty days if the appellant resides abroad.

Rome, July 17, 2024

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Cerrina Feroni

THE SECRETARY GENERAL

Mattei

1) The screens sent by the complainant show the following wording: "Marketing purposes: I wish

1) "to receive marketing communications about products and services offered by Iliad through automated and/or traditional communication means."

2) In this regard, a recent ruling by the Court of Cassation has clarified that the concept of "sale" must be interpreted restrictively, as the soft spam exemption can only apply in cases where a contract for consideration has already been concluded between the holder and the interested party, with the mere attempt made by the user being irrelevant for this purpose (cf. Cass. II civil section, ruling of March 15, 2023, no. 7555).

3) The text of point P) of the information notice in effect as of July 14, 2023, attached by Iliad to the defensive memorandum is reported as follows: "to send reminder communications via e-mail, also on behalf of companies that offer consumer credit services for the purchase of Products in the interest of Users, regarding the purchase process of Products and/or Services on the Iliad website initiated and not completed by the Users themselves, it being understood that, at any time, the User has the option to oppose the receipt of such communications through the methods set out in Section 8 below. Iliad will send Users no more than 3 reminder communications via e-mail – in case of non-completion of the purchase order following the first sending – at intervals of 24 hours each and within no more than 7 days following the date of initiation of the purchase process by the User ("Basket Recovery Purpose")."

4) Cf. provision regarding Consent to the processing of personal data for the purposes of "direct marketing" through traditional and automated contact tools - May 15, 2013 - Published in the Official Gazette no. 174 of July 26, 2013 - available at www.garanteprivacy.it, doc web no. 2543820.

5) In point P) of the information notice, it is indicated that Iliad will rely on legitimate interest "to send reminder communications via e-mail...regarding the purchase process of products and/or services on the Iliad website initiated and not completed by the Users themselves, it being understood that, at any time, the User has the option to oppose the receipt of such communications...Iliad will send Users no more than 3 reminder communications via e-mail - in case of non-completion of the purchase order following the first sending - at intervals of 24 hours each and within no more than 7 days following the

date of initiation of the purchase process by the User."